

Community Coordinator Independent Contractor Agreement

Effective date: [EFFECTIVE DATE]

Draft for legal review — not yet in force. Worker classification is a high-risk area. Have a licensed attorney review this before use, and re-review if you ever engage coordinators in California, Massachusetts, or New Jersey (strict "ABC test" states).

This Independent Contractor Agreement ("**Agreement**") is between [COMPANY LEGAL NAME], a [STATE OF FORMATION] [ENTITY TYPE] ("**Cirqlback**," "**Company**"), and the individual or entity identified in the signature block ("**Coordinator**," "**you**"). It governs your engagement as a **Community Coordinator**.

1. Independent contractor relationship

You are engaged as an **independent contractor, not an employee, agent, partner, or joint venturer** of Cirqlback. Nothing in this Agreement creates an employment relationship. Specifically:

- **You control the means and methods** of your work — your schedule, your methods, and how you achieve results. Cirqlback specifies the *outcomes* it wants (e.g., onboarding and supporting businesses in your territory) and provides tools and guidance, but does not control the manner and hours of your work.
- **You provide your own equipment** (phone, computer, transportation, internet) and pay your own business expenses unless expressly agreed otherwise in writing.
- **You may work for others**, including other clients, provided you do not breach the confidentiality or conflict-of-interest terms below.
- **No benefits.** You are not entitled to employee benefits (health insurance, paid leave, workers' compensation, unemployment insurance, retirement, etc.).
- **Taxes are your responsibility** (see Section 6). Cirqlback will not withhold income or payroll taxes.
- **No authority to bind.** You may not sign contracts, incur obligations, make promises, or otherwise bind Cirqlback except as expressly authorized in writing. You must not represent yourself as an employee or officer of Cirqlback.

2. Services and territory

You will promote, onboard, verify, and support local businesses on the Cirqlback platform within your assigned **territory** (a defined geographic area), run region-appropriate campaigns, and provide local support, consistent with Cirqlback's published guides and quality standards. Territory assignment is non-exclusive to any employment and may be adjusted by mutual agreement. You will comply with applicable laws and Cirqlback's [Terms of Service](#) and policies in performing the Services.

3. Compensation — revenue share

- **Share.** Cirqlback will pay you a **revenue share** of the gross subscription and add-on revenue actually collected from businesses in your territory, at the rate shown in your dashboard (default **70%** to Coordinator / **30%** to Company), which an administrator may set within a **50%–100%** band. Each charge snapshots the rate in effect at the time of that charge; rate changes apply prospectively only.
- **When earned/paid.** Amounts accrue as revenue is collected. Payouts are issued on the **15th of each month** for share amounts earned and cleared as of that date, reconciled to a statement and paid to your designated account (which may be via **Stripe**). Chargebacks, refunds, and failed collections reduce or reverse the associated share.
- **No draw or guarantee.** Compensation is entirely performance-based. Cirqlback does not guarantee any minimum earnings, number of businesses, or income.
- **Sole compensation.** This revenue share is your sole compensation. You are responsible for your own expenses.

4. Term and termination

This Agreement begins on the Effective Date and continues until terminated. **Either party may terminate for convenience on [NOTICE PERIOD, e.g., 30 days] written notice**, or immediately for material breach, fraud, or conduct harmful to Cirqlback or its users. On termination: you stop representing Cirqlback; you are paid earned, unpaid share for revenue collected through the termination date (subject to reversals); and Sections 5–10 survive.

5. Confidentiality

You will receive confidential information (business lists, prospect data, pricing, methods, customer data). You will use it only to perform the Services, keep it confidential during and after the engagement, and return or destroy it on termination. Customer and business data is subject to the [Privacy Policy](#) and applicable law; you must not sell it or use it for any purpose other than performing the Services.

6. Taxes, 1099 reporting, and status

- You are responsible for **all federal, state, and local taxes** on your compensation, including **self-employment tax**, and for any required business licenses and registrations.
- You will provide a completed **IRS Form W-9** (or W-8 if non-U.S.). Where required, Cirqlback will report your compensation on **IRS Form 1099-NEC**.
- You agree you are **not** treated as an employee for tax purposes and will not claim employee benefits. See the [Coordinator 1099 Guide](#) for a plain-English explanation.

7. Intellectual property

Any materials, improvements, or work product you create specifically for Cirqlback in performing the Services ("**Deliverables**") are **works made for hire** to the extent permitted by law, and you **assign** to Cirqlback all rights in Deliverables and in any Cirqlback trademarks, content, and platform improvements. You retain ownership of your own pre-existing materials and general know-how. You grant Cirqlback a license to use your name/likeness only as reasonably needed to identify you as a coordinator, revocable on termination.

8. Non-solicitation and non-circumvention

During the engagement and for **[12 months]** after, you will not (a) solicit Cirqlback's businesses or customers to leave the platform or to a competing local-loyalty service you operate or represent, or (b) circumvent Cirqlback to provide substantially the same platform services to businesses you onboarded through Cirqlback. **This is a restriction on unfair circumvention, not a general non-compete** — you remain free to work in the industry. *(Flag for counsel: enforceability and scope vary by state; some states limit or ban non-competes and restrict non-solicits.)*

9. Representations, indemnity, and liability

- You represent you are legally able to perform the Services and will comply with law.
- You will **indemnify and hold harmless** Cirqlback from claims arising out of your acts or omissions, your misrepresentations, your tax obligations, your breach of this Agreement, or a determination that you engaged your own workers.
- Cirqlback's liability to you is limited to unpaid, earned compensation; neither party is liable to the other for indirect or consequential damages.

10. General

- **Insurance (recommended).** You are encouraged to carry your own general liability and, if applicable, auto insurance. Cirqlback does not provide you insurance coverage.
 - **Assignment.** You may not assign this Agreement without Cirqlback's consent; Cirqlback may assign it in a business transfer.
 - **Governing law / disputes.** Governed by the law of **[GOVERNING LAW STATE]**; disputes resolved as stated in the [Terms of Service](#).
 - **Entire agreement.** This Agreement, with the documents it references, is the entire agreement on this subject and supersedes prior understandings. Amendments must be in writing. If a provision is unenforceable, the rest remains in effect.
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Signatures

Coordinator

Name: _____ Business/Entity (if any): _____

Signature: _____ Date: _____

W-9 on file: ☐

[COMPANY LEGAL NAME]

By: _____ Title: _____

Signature: _____ Date: _____

This document is a draft and does not constitute legal advice. Worker classification carries significant liability if done wrong — have a licensed attorney review before use.